

MS.2 Permit Application Checklist

What to gather before you file — starting with the one approval that binds every parcel in Mississippi whether or not a building code does.

Before you use this document

This is a process reference, not legal advice. Mississippi is the hardest state in the country to write a permit guide for, because the answer genuinely changes at the county line: some counties enforce a building code and inspect your house, and others enforce none at all. Confirm every item with the office that will actually issue your permit before you rely on it.

DO THESE IN THIS ORDER

Most permit checklists start with the building permit. In Mississippi that is the wrong end. Your building permit may not exist; your **wastewater approval** almost certainly does, it can dictate where on the lot the house may sit, and until it is in hand a public water utility is **forbidden by statute** from connecting you.

The sequence that avoids rework

	Step	Why it comes here
1	Notice of intent for the septic system	Required before you construct or place the residence. Statewide. Drives the soil evaluation, which can move the house on the lot
2	Establish your code status	MS.4. Whether a building permit exists at all, and who issues it
3	Flood determination	Before you design. If you are in a mapped flood hazard area it changes the foundation, and the ordinance applies even where the building code does not
4	Driveway and address	Road access permission and an E-911 address. Utilities and lenders both ask for the address
5	Building permit, if one exists	With evidence of your licensing exemption — the building official is required to ask for it
6	Utility applications	Temporary construction power, permanent service, water membership and meter

THE WASTEWATER APPROVAL — THE ONE THAT ALWAYS APPLIES

This is the most important page in the kit for anyone building outside a sewer district. Mississippi's Individual On-site Wastewater Disposal System Law sits in the **public health** title, not the building-code title, so a county's building-code status has no effect on it whatever. It applies in an opted-out county exactly as it applies in Gulfport.

The two sentences that govern your build

You must file before you build. *"No owner, lessee or developer shall construct or place any mobile, modular or permanently constructed residence, building or facility, which may require the installation of an individual on-site wastewater disposal system, **without having first submitted a notice of intent to the department.**"*

Note what triggers it: constructing or placing the **residence** — not installing the septic system. The obligation lands at the start of your project, not the end. (§ 41-67-5(1))

And your water is locked to it. *"No public utility supplying water shall make connection to any dwelling, house, mobile home or residence **without the prior written approval of the department** certifying that the plan for the sewage treatment and disposal system at the location of the property complies with this chapter."* This is why the health department's paperwork is what your water association asks to see before it will set a meter. (§ 41-67-5(2))

There is a construction-period allowance, and it comes with a condition worth reading twice: connections *"may be made during construction if the department has approved a plan ... **and the owner of the property has agreed to have the system inspected and approved by the department before the use or occupancy of the property.**"* You can get construction water on an approved plan — but you have promised the inspection, and occupancy is the deadline.

Miss. Code Ann. § 41-67-5(1), (2), quoted verbatim from the Mississippi Individual On-site Wastewater Disposal System Law as reenacted by House Bill 522, 2023 Regular Session, read at billstatus.ls.state.ms.us and published by MSDH at msdh.ms.gov → Regulation → On-Site Wastewater → Laws and regulations. Verified August 2026.

The process, as the Department runs it. The application is the Department's *Statement of Intent — Individual On-site Wastewater Disposal System (IOWDS): New*, Form 908, filed with the legal description of the property, a plot plan showing the buildings and improvements, and the fee. Apply online through the Department's wastewater application page at **msdh.ms.gov**, or by mail to the Division of On-site Wastewater in Jackson.

The five steps, and what you receive at each

Step	What happens
1. Application	Form 908 with the legal description, plot plan and fee
2. Site soil evaluation	Carried out by the local environmentalist — the step often called a percolation test. This determines which systems your soil will accept, and can move the house on the lot
3. Permit / recommendation	Issued to you after the evaluation, listing the system options recommended for your property. This is the document you present to your water supplier to get a meter

The five steps, and what you receive at each

Step	What happens
4. Installation and inspection	A certified installer installs one of the recommended systems, and is responsible for contacting the Department 24 hours before starting work to schedule the inspection
5. Final approval	Issued once the Department has the installer's signed installation affidavit — plus, for an advanced treatment system, your signed maintenance affidavit

Mississippi State Department of Health, Statement of Intent — Individual On-site Wastewater Disposal System (IOWDS): New, Form 908. Fees are set by the Department and are deliberately not reproduced here — ask for the current schedule when you apply and write it into the checklist below.

The two-acre exemption — real, statutory, and narrower than it sounds

Mississippi exempts larger lots from the Department's final approval, and from the water-connection bar with it: "Any lot or tract that is **two (2) acres or larger** shall be exempt from the requirements of this chapter and regulations of the department relating to approval of individual on-site wastewater disposal systems by the department, and shall be exempt from the provisions of Section 41-67-5(2), provided that: (a) All wastewater is contained on the lot or tract; (b) No watercourse ... is impacted; and (c) **The person who installed the ... system provides the department with a signed affidavit** attesting that the requirements of paragraphs (a) and (b) are met."

Read the three conditions as a set — the exemption is not automatic just because the tract is big. All three must hold, and the third puts a signature requirement on whoever installed the system.

And it only helps if nobody else wants the final approval. The Department's own application asks you to confirm that final approval is not required by your board of supervisors under a county ordinance, your water association or supplier, your **lender**, a public utility authority, or a subdivision agreement. Several Mississippi counties do require it by ordinance, a number of rural water associations require it, and FHA-backed financing requires it. Ask all of them before you rely on the exemption — and note that the Department publishes its list of such entities with the warning that it "may or may not be complete."

Miss. Code Ann. § 41-67-6(7), quoted verbatim. The categories of entity that may still require final approval are those listed on MSDH Form 908 and on the Department's map of county on-site wastewater ordinances.

Two more provisions worth knowing

A clock runs on the Department. Once you have met the requirements, "*the department must approve or disapprove the request within five (5) working days,*" must give written reasons for a disapproval, and — the part to remember — "*if the department does not respond to the request within ten (10) calendar days, the request ... **shall be deemed approved.***" (§ 41-67-7(1))

An aerobic or advanced system is a lifetime commitment. Where the soil will not take a conventional field, the statute requires the property owner to "*keep a continuing maintenance agreement with a certified installer on all advanced treatment systems **in perpetuity***" — unless the owner qualifies as a homeowner maintenance provider through the Department's training, which it provides without charge. Budget the contract, or take the training. (§ 41-67-7(5))

THE BUILDING PERMIT — IF YOUR PARCEL HAS ONE

Work MS.4 first. If a code is enforced, assemble the items below; if it is not, skip to the next section, because there is no application to make. Nothing here is a statewide list — Mississippi has no statewide permit application — so treat it as the common denominator and add whatever your office asks for.

For the building permit application

	Item	Date	Notes
☐	Recorded deed in your name, and the parcel number Parcel ID: _____		
☐	Evidence that you are exempt from residential builder licensing — § 73-59-17 requires the building official to refuse the permit without evidence of license or exemption. Ask what form that evidence takes before you go		
☐	Site plan showing the house, setbacks, driveway, well and septic location — usually the same plot plan the health department wanted		
☐	Floor plans, elevations and a foundation plan. Ask whether your jurisdiction requires plans sealed by an architect or engineer for a one- or two-family dwelling; this is set locally and varies		
☐	Energy compliance documentation, to whichever edition of the code your jurisdiction adopted — confirm the edition, because the statute permits any of the last three		

For the building permit application

	Item	Date	Notes
☐	Septic permit or recommendation from the health department, or written confirmation of public sewer availability Document #: _____		
☐	Flood determination, and an elevation certificate if you are in a mapped flood hazard area		
☐	Driveway or road access approval — county road department, or MDOT if you tie into a numbered state highway Approved: _____		
☐	Licensed trade contractors identified, with license numbers, for electrical, plumbing, mechanical and HVAC Verified at msboc.us on: _____		

IF THERE IS NO BUILDING PERMIT — WHAT STILL APPLIES

An opt-out is an opt-out of **the building code**. Everything below sits in a different statute or a different contract, and none of it cares what your board of supervisors resolved in 2014.

Approvals that survive a no-code parcel

	Item	Date	Notes / reference #
☐	Wastewater notice of intent filed before construction, and the permit or recommendation received (§ 41-67-5(1)) Filed: _____ Received: _____		
☐	Water connection — your supplier may not connect without the Department's prior written approval, unless your tract qualifies under the two-acre exemption <i>and</i> the supplier does not require final approval anyway (§ 41-67-5(2); § 41-67-6(7))		
☐	Floodplain development permit if your community takes part in the National Flood Insurance Program — the state construction-code exemptions are written expressly not to reach NFIP ordinances Flood zone: _____ Permit: _____		

Approvals that survive a no-code parcel

	Item	Date	Notes / reference #
☐	E-911 address assignment — usually needed before a utility will set a meter Address issued: _____		
☐	Driveway / culvert permission from the county road department, or MDOT on a state highway Approved: _____		
☐	Electric utility requirements — ask what release or inspection your supplier wants before energizing, since in a no-code county there is no municipal electrical inspector to sign anything		
☐	Zoning , if your county or city has it — separate from building code, and it may exist where the code does not		
☐	Licensed trades — the zero-dollar rule in § 73-59-3(1)(d) applies whether or not anybody inspects the work		
☐	Lender and insurer requirements — usually the strictest thing applying to a no-code build. Ask both before you close		

Sources — every Mississippi claim in this document (verified August 2026)

What this document states	Authority
A notice of intent must be submitted to the health department before constructing or placing a residence that may require an onsite system — statewide, regardless of building-code status	§ 41-67-5(1)
No public water utility may connect without the department's prior written approval; construction-period connection requires an approved plan and the owner's agreement to inspection before use or occupancy	§ 41-67-5(2)
Lots of two acres or larger are exempt from department approval and from § 41-67-5(2) on three conditions, including the installer's signed affidavit	§ 41-67-6(7)
The department must approve or disapprove within five working days, and a request is deemed approved if it does not respond within ten calendar days	§ 41-67-7(1)
Advanced treatment systems require a continuing maintenance agreement in perpetuity unless the owner is a qualified homeowner maintenance provider	§ 41-67-7(5)

Sources — every Mississippi claim in this document (verified August 2026)

What this document states	Authority
The wastewater chapter stands repealed July 1, 2028 unless reenacted — Mississippi extends it on a cycle	§ 41-67-31 (2023 HB 522)
The building official must be furnished evidence of license or exemption before issuing a permit	§ 73-59-17
Electrical, plumbing, mechanical and HVAC contractors of any tier must be licensed no matter the dollar amount	§ 73-59-3(1)(d)
NFIP floodplain ordinances are unaffected by the state construction-code exemptions	§ 17-2-7(5); § 17-2-9(6)

Every Mississippi Code section cited above is free to read. The Legislature's official copy is at **legislature.ms.gov** → Mississippi Code (Title 73, Chapter 59 is residential builders; Title 17, Chapter 2 is building codes; Title 41, Chapter 67 is onsite wastewater). The State Board of Contractors publishes the whole residential law and its rules as one booklet at **msboc.us** → Laws, and the Department of Health publishes the wastewater law at **msdh.ms.gov**. Enacted bills — which is how the dates and opt-out windows in this kit were checked — are at **billstatus.ls.state.ms.us**. All statute text quoted in this kit was read at those sources and verified August 2026.